

EXHIBIT “B-2”

DISTRICT COURT, COUNTY OF DENVER, STATE OF COLORADO 1437 Bannock Street Denver, Colorado 80202	DATE FILED: February 1, 2017 5:13 PM FILING ID: 92D785321D243 CASE NUMBER: 2017CV30444
Plaintiff: SEAN SEELEY, vs. Defendants: HOME DEPOT U.S.A., INC., a Delaware corporation; JOHN DOE I; and JOHN DOE II.	▲ COURT USE ONLY ▲
Attorneys for Plaintiff: William Babich, #11162 Bryan D. Doran, #50435 BABICH LAW FIRM, LLC 1873 South Bellaire Street Suite 1125 Denver, Colorado 80222-4359 (303) 691-5222	Case No: Div/Ctrm:
COMPLAINT AND JURY DEMAND	

COMES NOW, Plaintiff, Sean Seeley, by and through his attorneys of record, BABICH LAW FIRM, LLC, and for his Complaint against the above-captioned Defendants, states and alleges as follows:

PRELIMINARY ALLEGATIONS

1. At all times pertinent hereto, Home Depot U.S.A., Inc. (hereinafter referred to as "Home Depot") was a foreign corporation or entity doing business in the State of Colorado, with a registered agent located in the City and County of Denver, Colorado.
2. At all times pertinent hereto, Defendant Home Depot was engaged in and conducted commercial sales activities throughout Colorado, including Denver, Colorado.
3. At all times pertinent hereto, Plaintiff Sean Seeley resided in the State of Colorado.

4. At all times pertinent hereto, Defendant Home Depot owned and operated the Home Depot store #1503 located at 10003 Grant St., Thornton, Colorado 80229.

5. Upon information and belief, at all times pertinent hereto, Defendants John Doe I and II were employees of Defendant Home Depot and resided in the State of Colorado.

6. Venue is proper pursuant to C.R.C.P. 98(c)(1).

7. On February 3, 2015, Defendant Home Depot did not establish, follow and/or enforce proper and adequate safety rules and procedures with regard to the operation of forklifts in an area open to customers during its business hours; did not properly and adequately close an area in which customers were shopping before moving a forklift into the area; operated and allowed the operation of a forklift in a careless and reckless manner; and failed to have only properly and adequately qualified, trained and supervised personnel operating the forklifts and spotting during regular business hours.

8. At all times pertinent, John Doe I, an employee of Defendant Home Depot, was operating a forklift at the Home Depot store located at 10003 Grant St., in the course and scope of his employment.

9. At all times pertinent, John I was assisted by John Doe II, also a Home Depot employee acting in the course and scope of his employment, whose role was to act as a spotter and assure the forklift operated at a safe distance from customers.

10. At that same time and place, John Doe I and II moved a forklift into an area where customers, including Plaintiff, were shopping and did not close the area before moving into it.

11. Defendant John Doe I rapidly and without warning turned the forklift he was operating into a material cart, driving it into Mr. Seeley and pinning him between the material cart and a wall.

12. The acts and omissions set forth in this Complaint resulted in physical injury to Plaintiff Sean Seeley including but not limited to: **crush injury to the knee with left knee and complex tear of medial meniscus and Medial Collateral Ligament (MCL) injury; knee derangement; contusion of the left knee; parameniscal cysts; injury of the femoral nerve; pain in the joint of the lower leg; and post-traumatic meralgia paresthetica to the left extremity**, all of which injuries and sequela have resulted in past and future: reasonable and necessary medical care and treatment; medical and rehabilitation expenses; substantial lost earnings and impairment of earning capacity; loss of time and inconvenience; physical pain and mental suffering; loss of quality and enjoyment of life; and permanent physical impairment and disfigurement, all in an amount to be determined at trial.

13. Plaintiff Sean Seeley is entitled to interest on his damages, including pre-judgment interest pursuant to C.R.S. 13-21-101, from the time of the event, as well as post-judgment interest allowed by law.

FIRST CLAIM FOR RELIEF
(Defendants Home Depot and John Does I and II – Premises Liability)

14. Plaintiff incorporates by reference the Preliminary Allegations and the allegations of each Claim of Relief, so far as necessary to this Claim for Relief.

15. At all relevant times, Defendants Home Depot and John Does I and II were each a “landowner” as contemplated by the Premises Liability Act (PLA), C.R.S. § 13-21-115, responsible for a condition, activities conducted, or circumstances existing upon the premises.

16. Plaintiff was an invitee, as contemplated by C.R.S. § 13-21-115, upon the subject premises.

17. Defendants Home Depot and John Does I and II had a non-delegable duty of care to protect customers such as Plaintiff against a dangerous condition, activity, or circumstance existing on the premises of which they knew or should have known.

18. Defendants Home Depot and John Does I and II knew or should have known that forklift operations during the business day in a common shopping area open to customers created a dangerous condition, activity or circumstance upon the premises.

19. Defendants Home Depot and John Does I and II knew or should have known that a dangerous condition, activity or circumstance upon the premises existed by its acts and omissions including but not limited to: failing to establish, follow and/or enforce proper and adequate safety rules and procedures with regard to the operation of forklifts in an area open to customers during its business hours; failing to properly and adequately close the area before moving a forklift into the area where customers are shopping; operating and allowing the operation of a forklift in a careless and reckless manner; and failure to have only properly and adequately qualified, trained and supervised personnel operating the forklifts and spotting.

20. Defendants breached their duties and unreasonably failed to exercise reasonable care to protect Plaintiff against dangers of which they knew or should have known.

21. Defendants breached that duty with respect to Plaintiff in failing to establish, follow and/or enforce proper and adequate safety rules and procedures with regard to the operation of forklifts in an area open to customers during its business hours; failing to properly and adequately close the area before moving a forklift into the area where customers are shopping; operating and allowing the operation of a forklift in a careless and reckless manner; and failure to have only properly and adequately qualified, trained and supervised personnel operating the forklifts and spotting during regular business hours.

22. As a direct and proximate result of the breaches of duty by Defendants Home Depot and John Does I and II, Plaintiff has suffered and will continue to suffer into the future injuries, damages, harms, and losses as set forth in the Preliminary Allegations.

SECOND CLAIM FOR RELIEF
(Negligence – Defendant John Doe I)

23. Plaintiff incorporates by reference the Preliminary Allegations and the allegations of each Claim for Relief so far as necessary to this Claim for Relief.

24. In the event that John Doe I is determined not to be a “landowner” under the PLA with respect to this event and/or the PLA is determined not to be the exclusive cause of action with respect to this Defendant in these circumstances, Plaintiff sets forth the following alternative/ additional Claim for Relief.

25. At all times pertinent hereto, Defendant John Doe I had a duty to operate the forklift in a safe and reasonable manner.

26. At all times pertinent hereto, Defendant John Doe I operated the forklift in a careless and reckless manner including but not limited to: operating the forklift in unsafe proximity to customers; operating the forklift in an out-of-control manner; spinning the forklift at excessive speed; striking a material cart and driving it into Plaintiff.

27. As a direct and proximate result of Defendant John Doe I’s acts and omissions, Plaintiff Sean Seeley suffered injuries, damages, harms and losses as set forth in the Preliminary Allegations.

THIRD CLAIM FOR RELIEF
(Negligence – Defendant John Doe II)

28. Plaintiff incorporates by reference the Preliminary Allegations and the allegations of every Claim for Relief so far as necessary to this Claim for Relief.

29. In the event that John Doe II is determined not to be a “landowner” under the PLA with respect to this event and/or the PLA is determined not to be the exclusive cause of action with respect to this Defendant in these circumstances, Plaintiff sets forth the following alternative/ additional Claim for Relief.

30. At all times pertinent hereto, Defendant John Doe II had a duty to assist Defendant John Doe I by acting as a “spotter” or “lookout” to ensure the forklift did not travel near customers or endanger customers.

31. At all times pertinent hereto, Defendant John Doe II performed those duties in a careless and reckless manner including failure to ensure the forklift did not travel near customers or endanger customers.

32. As a direct and proximate result of Defendant John Doe II’s acts and omissions, Plaintiff suffered injuries, damages, harms, and losses as set forth in the Preliminary Allegations.

FOURTH CLAIM FOR RELIEF
(*Respondeat Superior* – Home Depot)

33. Plaintiff incorporates by reference the Preliminary Allegations and the allegations of every Claim for Relief so far as necessary to this Claim for Relief.

34. At all times pertinent hereto, Defendants John Doe I and II were employees and/or agents of Defendant Home Depot, acting within the course and scope of their employment and/or agency with Defendant Home Depot.

35. Defendant Home Depot is vicariously liable for the acts and omissions of Defendants John Doe I and II.

36. As a direct and proximate result of the acts and omissions of Defendants John Doe I and II, for which Defendant Home Depot is vicariously liable, Plaintiff suffered injuries, damages, harms, and losses as set forth in the Preliminary Allegations.

FIFTH CLAIM FOR RELIEF
(Defendant Home Depot – Negligent Training and Supervision)

37. Plaintiff incorporates by reference the Preliminary Allegations and the allegations of every Claim for Relief so far as necessary to this Claim for Relief.

38. In the event that Defendant Home Depot is determined not to be a “landowner” under the PLA with respect to this event and/or the PLA is determined not to be the exclusive cause of action with respect to this Defendant in these circumstances, Plaintiff sets forth the following alternative/ additional Claim for Relief.

39. At all times pertinent hereto, Defendant Home Depot had a duty to properly and adequately train and supervise its employees/agents regarding the safe and proper operation of a forklift.

40. Defendant Home Depot knew or should have known that improperly or inadequately trained and supervised employees/agents would subject third parties, such as Plaintiff, to an unreasonable risk of harm.

41. Defendant Home Depot breached its duty to properly and adequately train and supervise its employees/agents to prevent such harm.

42. As a direct and proximate result of the acts and omissions of Defendant Home Depot in its failure to properly and adequately train and supervise the subject employees, Plaintiff suffered injuries, damages, harms, and losses as set forth in the Preliminary Allegations incorporated herein.

WHEREFORE, Plaintiff Sean Seeley requests the Court enter judgment in his favor and against the Defendants, and each of them, and award Plaintiff compensatory damages in an amount to be determined at trial; plus pre judgment interest as allowed by law including C.R.S. §13-21-101 as well as post judgment interest as allowed by law; attorney fees allowed by law if there be any frivolous or groundless denial, defense, or affirmative defenses; and for such other and further relief as the Court may deem proper and just.

JURY DEMAND

PLAINTIFF REQUESTS A TRIAL TO A JURY OF SIX (6) PERSONS ON ALL ISSUES SO TRIABLE.

Respectfully submitted,

BABICH LAW FIRM
Attorneys for Plaintiff

*[Original signature on file at
BABICH LAW FIRM, LLC]*

s/ William Babich
William Babich, #11162
Bryan D. Doran, #50435
1873 South Bellaire Street
Suite 1125
Denver, Colorado 80222-4359

Plaintiff's Address:
657 S. Worchester St.
Aurora, CO 80012